IN THE SUPREME COURT OF PAKISTAN
Present:
* Hon'ble Mr. Justice Munib Akhtar
* Hon'ble Mr. Justice Muhammad Ali Mazhar

Civil Appeal No. 809 of 2016
Citation: 2016 SCMR 227
Matter ID: MAT-CIVI-2016-077

BETWEEN:
Muhammad Tariq Khan ... Appellant / Petitioner
VERSUS
Mrs. Farzana Kausar ... Respondent

LEGAL TOPIC: Civil - Specific Performance
STATUTES CITED: Specific Relief Act 1877, S. 12, Contract Act 1872, S. 73, Transfer of Property Act 1882, S. 53A

JUDGMENT
1. This judgment disposes of Civil Appeal No. 809 of 2016, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Specific Relief Act 1877, S. 12 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Specific Relief Act 1877, S. 12 and guaranteed fundamental rights, this petition is allowed. The impugned judgment is set aside and matter is remanded for decision afresh on merits.

Decided on: 8 October 2016.